Strata renovation rules

nsw.gov.au/housing-and-construction/strata/living/renovationsPrinted: 24 January 2022

Understand what changes need approval, otherwise you might be forced to change it back.

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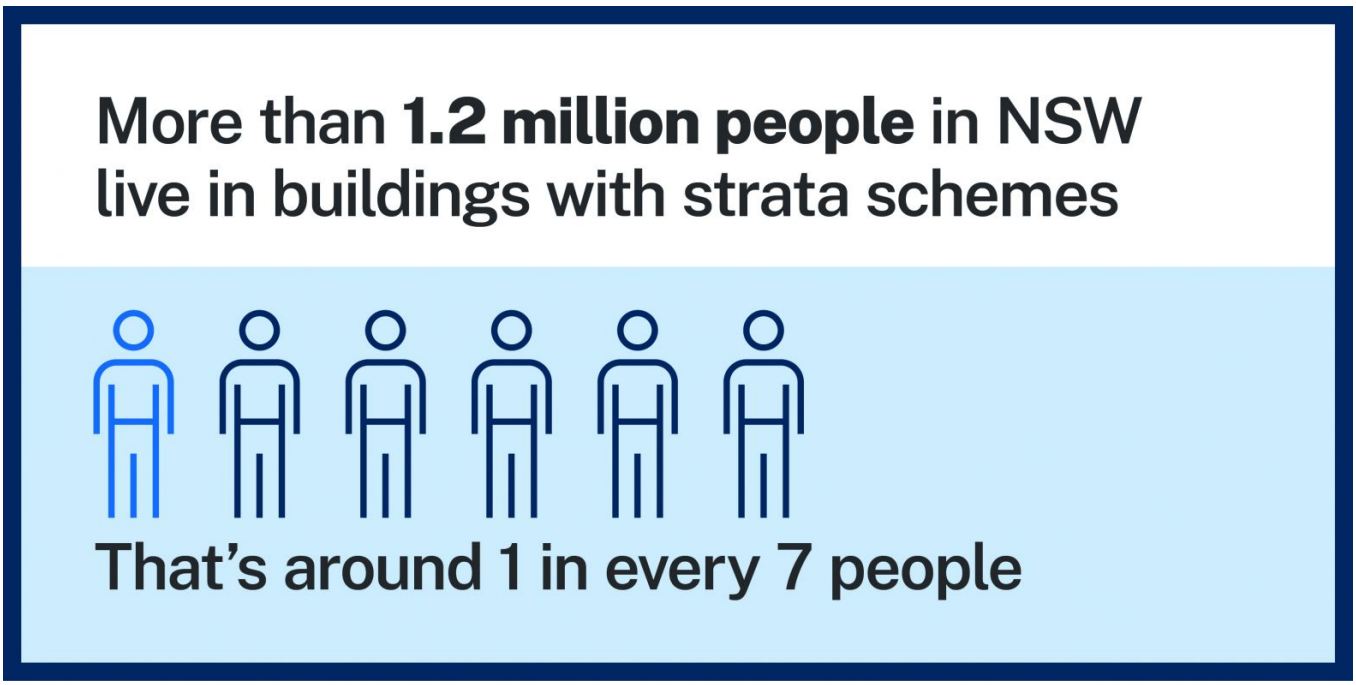
New flooring needs approval

Many people do not realise that putting in floorboards or tiles needs permission.

Key information

- You need permission to do a kitchen or bathroom renovation. You also need permission to change the walls, floors, or ceilings.
- Each strata is different. Check the by-laws (https://www.nsw.gov.au/housing-and-construction/strata/living/by-laws) before you start renovating so you know what approvals are needed and how to get them.
- If you don't follow the correct process, you risk having to pay money to put the property back to how it was before you renovated it.

Did you know?



Getting renovations done

Are you considering a renovation that will cost over $5,000

If you're planning any renovation to either an individual property or the common property, there are specific rules you should know about.

The Design and Building Practitioner Act (DBP) applies to strata buildings. These rules ensure that any building work on a strata building is completed safely and complies with building standards. They also help reduce the risk of defects to the property in the future.

The DBP Act includes the following rules for renovation work in strata buildings:

1. A design practitioner who is registered under the DBP scheme must prepare regulated designs.
2. A registered building practitioner must oversee the work.

Find a registered practitioner (https://verify.licence.nsw.gov.au/home/DBP)

The three types of renovations

1 Cosmetic work

Cosmetic work doesn't need approval.

Cosmetic work can't change the outside of a property or affect things like structure and waterproofing.

You are allowed to:

- install or replace hooks, nails or screws (for hanging paintings or other items on walls)
- install or replace handrails
- paint the interior
- install or replace blinds and curtains
- fill minor holes and cracks in internal walls
- lay carpet
- install or replace built-in wardrobes.

This applies to all strata schemes. Your strata scheme can choose to add more types of work to the list of cosmetic work. The owners corporation can pass a by-law to do this.

2 Minor renovations

Minor renovations need approval, often this is from the strata committee.

Many schemes give the approval power to the strata committee. Otherwise. approval will require a vote at a general meeting.

Write to the strata manager or secretary and ask them to vote on your changes. You'll need more than 50% of the votes cast in favour of the work at the meeting.

If the strata committee does not have the power to approve minor renovations, you'll need to ask for approval at an annual general meeting (AGM) or an extraordinary general meeting (EGM).

Minor renovations include work to:

- renovate a kitchen, including flooring

- change recessed light fittings
- install or replace flooring, such as hardwood or tiles, as well as removing carpets to expose the flooring underneath
- change internal walls
- install or replace wiring, cabling, power, or access points
- install a rainwater tank
- install a clothesline
- install a reverse cycle air conditioner
- install double or triple glazed windows
- install a heat pump
- install ceiling insulation.

This applies to all strata schemes. Your owners corporation can choose to pass a by-law to add other types of work to the list of minor renovations.

Minor renovations can't involve:

- structural changes or changes to a property's outside appearance
- anything affecting waterproofing (for example, most bathroom renovations).

Before you get approval, you may also need to show your strata committee:

- plans of the work, including dates and times of when the work will be done
- an acoustic certificate to show sound insulation if you're installing flooring
- qualifications and details of the tradespeople who will do the work.

3 Major renovations

Major renovations need a special resolution vote at an annual general meeting (AGM) or other general meeting. This means no more than 25% of the votes cast are against it, based on unit entitlement.

The strata committee can't approve major renovations.

Major renovations include:

- structural changes (for example, moving a structural internal wall)
- waterproofing (for example bathrooms)
- changes affecting the outside appearance of the property, such as an access ramp
- work that needs approval under other laws (for example, council approval)
- changes to the ceiling or making a false ceiling.

Giving notice

If your work changes the structure of a lot (for example, removing a wall or installing ducted air conditioning), you must also give the owners corporation at least 14 days' written notice before the work starts.

Your notice should describe how your renovations will change the property structure.

Is your tradesperson licensed?

Are you looking to do kitchen renovation? If you're using a building contractor or tradesperson you should check that they have a **valid contractor licence (https://www.service.nsw.gov.au/transaction/check-builder-or-tradesperson-licence)**.

Tenants

If you're a tenant, you should write to your landlord to ask them before you make any changes.

If the landlord agrees to the change, they must follow the strata approval process that is listed above, on the tenant's behalf. The landlord cannot unreasonably reject requests for 'minor' changes as set out in the tenancy laws.

Changing the rules

Many owners corporations update their by-laws to make the process of requesting approvals quicker and easier. For example:

1. an owners corporation creates a by-law that adds a range of items to the list it considers 'cosmetic', meaning owners don't need to seek approval each time.
2. the owners corporation creates a by-law that allows the strata committee to make all decisions on 'minor' renovations, rather than going to the full meeting of the owners corporation.

Learn more about **changing by-laws (https://www.nsw.gov.au/housing-and-construction/strata/serving-on-a-committee/change-strata-by-laws)**.

Renovations and common property

If you want to make a renovation that affects the common property, the responsibility for maintaining that part of the property may be transferred to you. This is decided by the owners corporation and will usually depend on how much your renovations affect the common property.

You would need to agree with the owners corporation that you will be responsible for maintaining the common property. To do this, a proposed formal agreement must pass a '**special resolution (https://www.nsw.gov.au/housing-and-construction/strata/living/meetings#types)**' which would allow for a new by-law to be created. The details of the agreement you have with the owners corporation will then be included in the by-law.

Some renovations may impact the use of common property. This is where an owner needs a right of exclusive use and enjoyment, or special privileges over the whole or a specific part of the common property, the owners corporation will need to pass a **common property rights by-law (https://www.nsw.gov.au/housing-and-construction/strata/serving-on-a-committee/change-strata-by-laws#toc-how-to-make-or-change-a-by-law)**.

The owners corporation may only make a common property rights by-law with the written consent of each owner who is granted rights or special privileges by the by-law.

Need more help?

Contact Fair Trading

If you have any further questions about strata, you can contact Fair Trading via phone or in-person at a Service NSW centre.

Phone:**13 32 20 (https://www.nsw.gov.au/tel:13 32 20)**8:30am to 5pm, Monday-Friday

In person:**Find your nearest Service NSW Centre (https://www.service.nsw.gov.au/service-centre)**

Related information

Popular pages

Strata meetings (https://www.nsw.gov.au/housing-and-construction/strata/living/meetings)

Learn the difference between annual general meetings, extraordinary general meetings, and strata committee meetings.

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Changing strata by-laws (https://www.nsw.gov.au/housing-and-construction/strata/serving-on-a-committee/change-strata-by-laws)

Owners corporations can update their by-laws to make the renovation approvals process quicker.

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Repairs and maintenance (https://www.nsw.gov.au/housing-and-construction/strata/living/repairs-and-maintenance)

Some renovations are actually 'maintenance' and should be paid for by the owners corporation.

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Resolving disputes (https://www.nsw.gov.au/housing-and-construction/strata/disputes)

How to resolve disputes and complaints, and what to do if you need help.

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Helpful links

- How do I contact the strata committee? → (https://www.nsw.gov.au/housing-and-construction/strata/roles#toc-strata-committee)
- How to know who my strata manager is? → (https://www.nsw.gov.au/housing-and-construction/strata/roles#toc-strata-managers)
- Difference between a strata manager and a building manager → (https://www.nsw.gov.au/housing-and-construction/strata/roles#toc-difference-between-a-strata-manager-building-manager-and-property-manager)
- Making changes to a rental property → (https://www.fairtrading.nsw.gov.au/housing-and-property/renting/during-a-tenancy/making-changes-to-a-rental-property)
- Design and Building Practitioners (DBP) Act 2020 → (https://legislation.nsw.gov.au/view/html/inforce/current/act-2020-007)

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Sign up to the Strata and community scheme updates newsletter (https://www.fairtrading.nsw.gov.au/subscribe)